

Project: \_\_\_\_\_

### TENANT ESTOPPEL CERTIFICATE

Tenant: \_\_\_\_\_

LEASE dated: \_\_\_\_\_

Amendments dated: \_\_\_\_\_

Premises: \_\_\_\_\_ s.f. Monthly fixed rent: \$ \_\_\_\_\_

Lease Term: Commenced \_\_\_\_\_ and will expire on \_\_\_\_\_

As of the date hereof, the undersigned Tenant under the above-referenced Lease, certifies to PROTECTIVE LIFE INSURANCE COMPANY, its successors and/or assigns ("Lender") as follows with respect to the Lease:

1. The Lease is the only lease affecting said premises and has not been amended, modified, changed, altered or supplemented, except as shown above. The above information is true and correct.
2. The Lease is in full force and effect and that there are no defaults thereunder or any conditions which with only the passage of time or giving of notice or both would become a default under the terms of said Lease.
3. The fixed monthly rent shown above has been paid through \_\_\_\_\_.
4. No rents have been prepaid except as provided by said Lease, but in no event have rents been paid more than thirty (30) days in advance and that there are no offsets or credits against future accruing rents.
5. Tenant is open and operating and in full and complete possession of the premises demised pursuant to the terms of said Lease. The demised premises, including all improvements, common areas and parking areas, as constructed, satisfy the requirements of said Lease and have been accepted and approved in all respects by Tenant.
6. All duties of an inducement nature and all inducement clauses have been fulfilled by Landlord.
7. Tenant has received no notice of a prior sale, transfer, assignment, hypothecation or pledge of said Lease or of the rents secured therein, except to Lender.
8. In the event that Lender shall succeed to title by foreclosure or deed in lieu of foreclosure, no claim shall be asserted against Lender for the return of any security deposit paid by Tenant unless Lender shall have received the amount of said security deposit at the time it acquires title.
9. Anything in the Lease to the contrary notwithstanding, Tenant agrees that it will not terminate the Lease or withhold any rents due hereunder because of Landlord's default in the performance thereof until Tenant has first given written notice to Landlord and to Lender specifying the nature of any such default by Landlord.

and allowing Landlord and Lender, or either of them, thirty days after date of such notice to cure such default, or a reasonable period of time in addition thereto if circumstances are such that said default cannot be reasonably cured within said thirty day period.

10. The Lease shall not be cancelled, surrendered or merged in the ownership of the fee of said premises except as specifically provided by the terms of the Lease.
11. Tenant agrees, any provision of the Lease to the contrary notwithstanding, that Landlord may disclose to Lender any information disclosed to Landlord pursuant to the lease terms concerning gross sales, receipts, percentage rent and the like.
12. Tenant acknowledges that the address to which notices shall be given to Lender is 2801 Highway 280 South, Birmingham, Alabama 35223, Attention: Investment Department.

The undersigned understands and acknowledges that Lender will rely on this Certificate in acquiring or making a mortgage loan to Landlord and that in connection with said loan, Landlord's interest in the Lease is being assigned to Lender as additional security for the Loan.

**TENANT:**

\_\_\_\_\_

By: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_